

26SMCV00607 26SMCV00607

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This is a demurrer brought by the management company in a case brought by the former tenant and also by the owner, TIC. Both defendants demur to various causes of action.

According to plaintiff, there were problems that became apparent in July 2024. Repairs were done, plaintiff agrees, but they were not adequate. The problems continued and the unit was unhealthful. Plaintiff continued to complain, but adequate repairs were allegedly never done. Plaintiff claims that the unit's condition wound up being so bad that plaintiff was forced to vacate—a constructive eviction.

TIC argues that the breach of contract cause of action should be dismissed as duplicative. The court agrees that there is some duplication, but the habitability and quiet enjoyment causes of action have other elements.

The causes of action are distinct enough to survive demurrer. The demurrer on that basis is **OVERRULED**. As to habitability, defendant contends that

plaintiff failed to allege the requisite elements. The court disagrees. Plaintiff alleges that there was toxic mold in the unit and that it persisted even after remediation, and that defendants were aware of the situation because plaintiff informed them of it. That is enough to withstand a pleading challenge and the demurrer on that ground is **OVERRULED**. TIC makes a similar argument regarding quiet enjoyment. Here, the allegation is that

the presence of the toxic mold meant that plaintiff could not enjoy the use of the unit. Again, that is enough for a

pleading motion, and the demurrer on that ground is **OVERRULED** as well. As to nuisance, TIC argues (again) that it is duplicative. Perhaps, but it is not

clear, and even if it is duplicative, it does no mischief. The court will therefore **OVERRULE** the

demurrer on that basis as well. Finally, as to the constructive eviction cause of action, TIC contends that the elements have not been alleged as required in *Bakersfield Laundry Ass'n v. Rubin* (1955) 131 Cal.App.2d Supp. 862. More specifically, TIC argues that plaintiff did not surrender possession within a reasonable time. In *Bakersfield*, the appellate division of the Superior Court concluded that waiting six months (with regard to a 1 year lease) was not reasonable. The court has not seen a whole lot of authority on this point, and *Bakersfield* is not really often cited for this proposition. However, the court believes that what is or is not reasonable will depend in large part on the facts and circumstances of the case, which cannot be adjudicated readily on demurrer. The demurrer is **OVERRULED** on this ground as well. TIC also moves to strike the request for punitive damages as to the negligence cause of action, interest, fees, and costs. The court agrees as to punitive damages for negligence. Negligence does not allow such an award. As to the negligence cause of action, and that cause of action only, the motion to strike is **GRANTED**. It is **DENIED** in all other respects.

Glen West joins in TIC's arguments, and the rulings are therefore the same. But Glen West also contends that it owed plaintiff no duty as a matter of law because it did not own the property. The court disagrees. Whether a property manager owes a duty to a tenant will depend on the circumstances. For example, in some instances a property manager might have no discretion to approve or do much of anything. But in other cases, the property manager might well have a great deal of discretion. In the former, it might well be that the lack of any authority will negate a duty of care, but in the latter, a duty of care might well exist. The court cannot tell from the pleadings. The demurrer on this basis is **OVERRULED**. Glen West also demurs to the nuisance cause of action. Even though there are no specific allegations about Glen West's conduct with regard to the nuisance, reading the complaint liberally and broadly (as the court must do on demurrer), it could be that Glen West had sufficient authority to be liable for the tort. For example, if Glen West deliberately ignored the mold even though it knew that there was toxic mold in

the unit and that the remediation would not or did not resolve the problem, that could be enough even though Glen West was not the owner. Again, the demurrer is OVERRULED. As to constructive eviction, Glen West seems to be arguing that because plaintiff dismissed the contract cause of action against Glen West (because it was not a signatory to the contract), there can be no constructive eviction either. The court is not convinced, and Glen West cites not authority for that proposition. Constructive eviction does not lie solely in contract. It is not clear to the court that a property manager with sufficient discretion cannot be liable for constructive eviction. Accordingly, the demurrer is OVERRULED as to that ground as well. The motion to strike is GRANTED IN PART AND DENIED IN PART for the same reasons that TIC's motion was partially granted.

In short, as to both demurrers and motions to strike, the demurrers are OVERRULED; the motions to strike are GRANTED IN PART AND DENIED IN PART. Defendants have 30 days to answer.